



SPONSOR: Rep. Heffernan & Sen. Cruce
Reps. Berry, Bolden, Cooke, K. Johnson, Lambert,
Morrison, Neal, Ross Levin, Snyder-Hall; Sen. Seigfried

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 262

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO PAID LEAVE.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 1333, Title 14 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 1333. Paid leave for birth of a child or adoption of a child.

4 (a) Any full-time employee or employee who has been employed by a reorganized school district, charter school
5 or vocational school district for at least 1 year, shall be entitled to 12 weeks of paid leave upon the birth of a child of the
6 employee, or upon the adoption by the employee of a child who is 6 years of age or younger.

7 (b) The entitlement to leave under subsection (a) of this section shall expire at the end of the 12-month period
8 beginning on the date of such birth or adoption.

9 (c) Without regard to length of employment, a full-time or part-time employee of a reorganized school district,
10 charter school, or vocational school district shall be entitled to use accumulated sick leave upon the birth of a child of the
11 employee, or upon the adoption of a child who is 6 years of age or younger.

12 (d) The rights and benefits described in this section shall run concurrently with any rights and benefits available
13 under the Family Medical Leave Act, 29 U.S.C. § 2601 et seq. for the birth and adoption of a child and short-term disability
14 benefit pursuant to § 5253 of Title 29 for the birth of a child.

15 (e) No state agency, board, department, reorganized school district, charter school, vocational school district or
16 other employing officer or agency of this State may alter or terminate the benefits of or terminate the employment of any
17 full-time employee as a result of taking leave pursuant to this section.

18 (f) For purposes of this section, the entitlement to leave for the adoption of a child may begin at one of the
19 following times, to be determined by the employee:

20 a. When the child is placed for adoption with the employee under § 904 of Title 13.

21 b. When the employee initiates a petition for adoption in Family Court.

22 c. Upon the completion of the adoption process.

SYNOPSIS

This Act clarifies that paid leave for the adoption of a child may begin at one of the following times: (1) when the child is placed for adoption with the employee; (2) when the employee initiates a petition for adoption; or (3) when the adoption process is completed.